

TENTATIVE RULINGS FOR September 23, 2026
Department R-14
BEFORE THE HONORABLE TONY RAPHAEL
(909) 285-3717

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department R-14 at SScott@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

PLEASE REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling the department at 909-285-3717. If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

Setlich -V- Olivares

CIVRS2509039

PROCEDURAL/FACTUAL BACKGROUND

This is an attorney fee collection case. On October 16, 2025, Plaintiff John R. Setlich filed a Complaint against Defendant Anabel Olivares, alleging the following causes of actions: (1) Declaratory Relief; and (2) Determination of Attorney's Fees.

The Complaint alleges that Plaintiff, a duly licensed attorney, was initially retained by Defendant's Spouse, Eric Olivares, in connection with a family-law child-support matter and a separate civil harassment restraining order matter against a neighbor. At the same time, Plaintiff provided additional consultation to Defendant regarding a potential civil action related to the same dispute. (Compl. ¶¶ 1, 5-9.)

Following the conclusion of the matters, Defendant became dissatisfied with the overall outcome and initiated fee arbitration through the San Bernardino County Bar Association Fee Arbitration Program, Case No. 2024-18. On or about September 16, 2025, the Arbitrator issued a written Decision and Awards finding that Defendant had overpaid fees and ordering a refund in the approximate amount of \$19,729.00 ("Arbitration Award"). Plaintiff alleges that the Arbitration Award contained material errors and omissions and that Plaintiff was denied an opportunity to be fully heard because the Arbitrator refused to continue the hearing when Plaintiff's Counsel could not appear. On October 16, 2025, within thirty (30) days after service of the Arbitration Award, Plaintiff filed and served a Notice of Rejection of Arbitration Award and Request for Trial After

Arbitration, pursuant to Business and Professions Code section 6204, subdivision (b).¹ (Compl. ¶¶ 10-16.)

Now before the Court is Plaintiff's motions to compel Defendant to appear for deposition and to produce non-privileged documents identified in the operative deposition notice. The Motion was filed on July 17, 2026.

On September 8, 2026, Defendant filed an opposition. On September 16, 2026, Plaintiff filed a reply.

DISCUSSION

I. Statement of Law

¹ Business and Professions Code section 6204 states in pertinent part:

(a) The parties may agree in writing to be bound by the award of arbitrators appointed pursuant to this article at any time after the dispute over fees, costs, or both, has arisen. In the absence of such an agreement, either party shall be entitled to a trial after arbitration if sought within 30 days, pursuant to subdivisions (b) and (c), except that if either party willfully fails to appear at the arbitration hearing in the manner provided by the rules adopted by the board of trustees, that party shall not be entitled to a trial after arbitration. The determination of willfulness shall be made by the court. The party who failed to appear at the arbitration shall have the burden of proving that the failure to appear was not willful. In making its determination, the court may consider any findings made by the arbitrators on the subject of a party's failure to appear.

(b) If there is an action pending, the trial after arbitration shall be initiated by filing a rejection of arbitration award and request for trial after arbitration in that action within 30 days after service of notice of the award. If the rejection of arbitration award has been filed by the plaintiff in the pending action, all defendants shall file a responsive pleading within 30 days following service upon the defendant of the rejection of arbitration award and request for trial after arbitration. If the rejection of arbitration award has been filed by the defendant in the pending action, all defendants shall file a responsive pleading within 30 days after the filing of the rejection of arbitration award and request for trial after arbitration. Service may be made by mail on any party who has appeared; otherwise service shall be made in the manner provided in Chapter 4 (commencing with Section 413.10) of Title 5 of Part 2 of the Code of Civil Procedure. Upon service and filing of the rejection of arbitration award, any stay entered pursuant to Section 6201 shall be vacated, without the necessity of a court order.

Service of a proper deposition notice obligates a party or “party-affiliated” witness to attend and testify, without necessity of subpoena. (Code Civ. Proc., § 2025.280, subd. (a).)

Code of Civil Procedure sections 2025.450, subdivision (a)² allows a party who served a valid deposition notice, not the subject of a valid objection, to move for an order to compel the deposition of the individual and production of documents when the individual fails to appear at the deposition and fails to provide the requested documents. Pursuant to Code of Civil Procedure section 2025.450, subdivision (b)(1), a motion to compel deposition attendance and testimony “shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc. § 2025.450, subd. (b)(1).)

In the context of a discovery motion compelling a deposition and related documents, monetary sanctions “shall” be imposed on the losing party unless the court finds the losing party “acted with substantial justification” or other circumstances make the imposition of the sanction “unjust.” (Code Civ. Proc. § 2025.450, subd. (g)(1).)

II. Analysis

A. Meet and Confer

A motion to compel deposition attendance and testimony “shall be accompanied by a meet and confer declaration under Section 2016.040³, or, when the deponent fails to attend the

² Because the deposition has not taken place, Code of Civil Procedure section 2025.480 is not applicable. Section 2025.480 uses language such as “after the completion of the record of the deposition,” indicating its purpose is to allow the party seeking oral deposition to compel further answers and documents after a completed deposition. (Code Civ. Proc., § 2025.480, subd. (b).)

³ Under Code of Civil Procedure section 2016.040, the meet and confer declaration in support of a discovery motion shall state facts showing “a *reasonable and good faith attempt*, either in person, by telephone, or by videoconference to informally resolve each issue presented by the motion” as well as whether the parties conferred on the need for a court reporter. (Code Civ. Proc. § 2016.040 (emphasis added).)

deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc. § 2025.450, subd. (b)(2).)

Implicit in the requirement that counsel contact the deponent to “inquire” about the nonappearance is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue by rescheduling the deposition. (*Leko v. Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th 1109, 1124 [holding that the failure to consider rescheduling a deposition and instead filing motion to compel resulted in sanctions against deposing counsel for filing unnecessary motion].)

Here, given that Plaintiff asserts that Defendant failed to attend her deposition and produce documents, Plaintiff need only show that he had contacted Defendant to inquire about her non-appearance. In support of meet and confer requirements, Plaintiff’s Counsel, David Palmer, testifies that Defendant’s deposition was initially scheduled and noticed for April 24, 2026. Following Defendant’s first non-appearance, Plaintiff sent a written correspondence on April 30, 2026 and requested her cooperation in completing the deposition. Plaintiff thereafter scheduled and noticed a second deposition to take place on June 12, 2026. However, Defendant did not appear again. (Palmer Decl. ¶¶ 3-6, 8-11.)

Given this, the Court finds that Plaintiff has sufficiently made a good faith attempt to meet and confer and to proceed on the merits.

B. Merits of Motion

In support of the Motion, Plaintiff’s Counsel, David Palmer, testifies that Defendant’s deposition was first noticed for April 24, 2026 at 1:00 p.m. at 15342 El Prado Road, Suite 200B, Chino, California 91710. (Palmer Decl. ¶ 3, Exh. 1.) However, Defendant did not appear for the

April 24, 2026 deposition and did not produce any documents. (Palmer Decl. ¶¶ 6, 20.) Defendant also did not serve any written objections, seek a protective order, request that the deposition be continued, provide advance notice that she would not attend, or provide any explanation for her nonappearance. (Palmer Decl. ¶ 6.)

Following Defendant's first non-appearance, Plaintiff sent a written letter to Defendant on April 30, 2026 concerning her failure to appear, requesting her cooperation in completing the deposition and advising her that continued noncompliance would result in a motion to compel and a request for sanctions. (Palmer Decl. ¶ 8.)

Plaintiff also provided Defendant with a second opportunity to appear for deposition, noticing a second deposition for June 12, 2026, at 1:00 p.m. (Palmer Decl. ¶ 9, Exh. 2.) However, Defendant, again, did not appear for the June 12, 2026 deposition and did not produce any documents. (Palmer Decl. ¶¶ 12, 20.) Furthermore, like on the previous occasion, Defendant did not serve any written objections, seek a protective order, request that the deposition be continued, provide advance notice that she would not attend, or provide any explanation for her non-appearance. (Palmer Decl. ¶ 12.)

Notably, the documents sought by Plaintiff at deposition include the following:

1. All documents evidencing any communication made between Plaintiff and Defendant;
2. All documents reflecting any payments Defendant made to Plaintiff; and
3. All documents evidencing any fee dispute, billing dispute, refund request, or demand for reimbursement involving Defendant and Plaintiff.

(Palmer Decl., Exhs. 1, 2.)

Plaintiff argues that the Motion should be granted and Defendant should be compelled to appear at deposition because Defendant's testimony is material to the claims and defenses presented in this action, specifically because Defendant's communications with Plaintiff,

payments for legal services, her objections to Plaintiff's billing, Defendant's own claimed damages, and alleged entitlement to reimbursement is directly at issue. (Palmer Decl. ¶ 18.) Furthermore, Plaintiff argues that the documents sought in the operative deposition are directly relevant to those same issues. (Palmer Decl. ¶ 19.)

In opposition, Defendant argues that the Motion should be denied because Plaintiff failed to properly serve the June 12, 2026 deposition notice and further argues that the two depositions were unilaterally scheduled without meeting and conferring or confirming Defendant's availability. Defendant also requests the issuance of a protective order before any deposition is conducted.

Here, when the evidence is reviewed, each deposition notice is accompanied by a proof of service which indicates that Plaintiff served both deposition notices by both regular mail and also by electronic mail on April 9, 2026 for the first deposition notice and on May 22, 2026 for the second deposition notice. (See Palmer Decl., Exhs. 1, 2.) Furthermore, when the proof of services accompanying each deposition notice is reviewed, it contains the exact same physical mailing address and electronic email address as indicated on the caption of each of Defendant's pleadings.

In general, the filing of a proof of service creates a rebuttable presumption that service was proper if the proof of service complies with the applicable statutory requirements. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441-1442.) In this matter, the presumption applies because both proofs of service do not appear to be invalid on the face of the record. However, Defendant fails to rebut this presumption because Defendant does not offer any evidence demonstrating that she was not properly served.

Furthermore, on reply, Plaintiff's Counsel testifies that during the April 24, 2026 deposition, Plaintiff's Counsel's office made at least one phone call attempt to Defendant to

determine her intentions. (Supp. Palmer Decl. ¶ 3.) Additionally, on the same day the reply brief was filed on September 16, 2026, Plaintiff's Counsel has also attempted to reach out to Defendant in another effort to get her deposition scheduled, but Defendant simply indicated that she would await the Court's ruling on this Motion. (Supp. Palmer Decl. ¶ 5.)

Lastly, in regard to Defendant's request for a protective order, the request is improperly made in an opposition. However, a formally noticed motion and hearing is required before a protective order is issued. (*St. Paul Fire & Marine Ins. Co. v. Superior Court* (1984) 156 Cal.App.3d 82, 85-86.) Furthermore, Defendant fails to establish good cause that Defendant would suffer unwarranted annoyance, embarrassment, or oppression, or undue burden and expense if such a protective order is not granted at the current time. (See Code Civ. Proc. § 2025.420, subd. (b).) If at the time of deposition, Defendant believes that a protective order is nonetheless necessary, Defendant may demand that the deposition be suspended and may subsequently file an appropriate motion in compliance with Code of Civil Procedure section 2025.470.

Therefore, the Court **GRANTS** Plaintiff's Motion to Compel Deposition Attendance and Production of Documents.

C. Sanctions

Under Code of Civil Procedure section 2025.450, subdivision (g)(1), if a motion to compel attendance at deposition is granted, the court shall impose a monetary sanctions in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Plaintiff seeks monetary sanctions in the total amount of \$2,840.00. This amount is billed at an hourly attorney rate of \$150.00 per hour for 5.6 hours of work in time spent preparing for

and attending the two unsuccessful depositions and also preparing the instant Motion, for a total of \$840.00 in attorney's fees; plus reimbursement of court reporter expenses totaling \$2,000.00. (Palmer Decl. ¶¶ 7, 13-17.)

Here, the request does not appear to be excessive. Moreover, sanctions against Defendant are warranted because it appears that Defendant willfully refused to appear for deposition, thereby necessitating the Motion.

As such, the Court **IMPOSES** sanctions against Defendant in the *total* sum of **\$2,840.00**.

CONCLUSION

Based on the foregoing, the Court rules as follows:

- i. **GRANTS** Plaintiff's Motion to Compel Deposition Attendance and Production of Documents; the deposition shall take place within ten (10) court days from the date of this ruling;
- ii. **IMPOSES** sanctions against Defendant in the total sum of \$2,840.00. Defendant shall pay Plaintiff sanctions in the amount of \$2,840 within 30 calendar days from the date of this order; and
- iii. **In light of the court's instant ruling, the Court continues the Trial Readiness Conference to December 3, 2026 at 9:00 a.m.; and the court Trial Date to December 7, 2026 at 10:00 a.m..**

Plaintiff's counsel is ordered to provide notice.